

DESIGN-BUILD AND CONSTRUCTION MANAGEMENT CONTRACTS

The Loudoun County School Board is committed to the efficient use of public funds and the use of various construction delivery methods allowed pursuant to the Virginia Public Procurement Act. A Design-Build or Construction Management contract may be considered for construction projects with a high degree of complexity, potential of significant unforeseen conditions, or is more fiscally advantageous or beneficial to the School Board than a design-bid-build construction contract.

Pursuant to the Virginia Public Procurement Act, Code of Virginia § 2.2-4300, *et seq.* (VPPA), and Code of Virginia §§ 2.2-4378 through 2.2-4383, the Loudoun County School Board (School Board), an authorized Public Body by Code of Virginia § 2.2-4301, has adopted the following as its procedures (Procedures) for utilizing Design-Build or Construction Management contracts for construction projects.

These procedures do not apply to procurements under the Virginia Public-Private Education Facilities and Infrastructure Act of 2002, Code of Virginia §§ 56-575.1, *et seq.* (PPEA), to which the School Board's separate PPEA guidelines apply.

A. The Superintendent of Loudoun County Public Schools (LCPS), or his or her designee, may recommend consideration by the School Board of use of "Design-Build" or "Construction Management" contracts for procuring non-professional services through competitive negotiation for a construction project rather than the design-bid-build project delivery method.

B. Prerequisites: Use of Design-Build or Construction Management contracts for LCPS construction projects requires School Board approval. Prerequisites for School Board approval include the following:

1. LCPS shall have in its employ or under contract a Virginia licensed architect or engineer who has professional competence appropriate to the project to advise LCPS regarding use of Design-Build or Construction Management for the project and who shall assist LCPS with preparation of the Request for Qualifications (RFQ), Request for Proposal (RFP), and evaluation of proposals received in response to the RFQ and RFP.

2. Prior to initiating the procurement, the Superintendent shall request authorization from the School Board, to use a Design-Build or Construction Management contract.

3. The request shall justify and substantiate that Design-Build or Construction Management is fiscally advantageous and more practicable the design-bid-build project delivery method with a general contractor and shall document the basis for the request to use a Design-Build or Construction Management contract.

4. The Superintendent, or his or her designee, shall document in writing the rationale for the specific construction project that: (i) a Design-Build or Construction Management contract is more advantageous than the design-bid-build project delivery method; (ii) there is a benefit to the School Board by using a Design-Build or Construction Management contract; (iii) the design-bid-build project delivery method is not practicable or fiscally advantageous; and (iv) the basis for the determination is

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provided to utilize Design-Build or Construction Management contracts, including the determination of the project's complexity. This justification shall be included in the RFQ, and be retained in the LCPS construction and procurement files for the project. The School Board shall review and approve the justification prior to approving the use of these procedures for each recommended project.

5. Construction Management contracts may be utilized for projects where the project cost is expected to be more than \$10 million.

6. Construction Management contracts may be utilized on projects where the project cost is expected to be less than \$10 million, provided that (i) the project is a complex project and (ii) the project procurement method is approved by the School Board. The written approval of the School Board shall be maintained in the procurement file.

7. Construction Management contracts shall be entered into no later than the completion of the schematic phase of design, unless prohibited by authorization of funding restrictions.

C. Procedures: The following general procedures and requirements apply to procurements where Design-Build or Construction Management contracts will be used, including without limitation, to the RFQ, RFP, evaluation of proposals, and selection of awardees:

1. The contract to be entered into must be for a fixed price or not-to-exceed price.

2. The procurement shall be conducted consistent with the Code of Virginia procedures for competitive negotiation for other than professional services and with standards and procedures adopted by the State Secretary of Administration. The procurement will be initiated by notices, an RFQ, and an RFP consistent with these procedures.

3. LCPS shall publish public notice of its RFQ from potential offerors at least thirty (30) days prior to the date set for receipt of qualifications. Public notice shall be posted on the LCPS website and the eVA website, Virginia's central electronic procurement website.

4. Qualifications may be solicited directly from potential offerors. The RFQ shall indicate in general terms what is sought to be procured, specifying the factors that will be used to evaluate the potential offerors' qualifications, and containing or incorporating by reference the other applicable contractual terms and conditions, including any unique capabilities or qualifications required of the offeror. The RFQ shall request from potential offerors only such information as appropriate for an objective evaluation of all potential offerors pursuant to such criteria.

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5. Offerors shall be allowed to clearly designate portions of their submissions as trade secrets or proprietary information pursuant to Code of Virginia § 2.2-4342. LCPS will take reasonable measures to safeguard from unauthorized disclosure such information properly designated as such, to the extent permitted by law.

6. Prior Construction Management or Design-Build experience shall not be a prerequisite for award of a contract. However, in the selection of a contractor, the School Board may consider the experience of each contractor on comparable projects.

7. The request for any exception to the procedures outlined in this Policy shall be reviewed by Division Counsel prior to submission to the School Board.

8. Prospective offerors or offerors may submit comments regarding RFQs, RFPs and specifications in writing to the Director of Construction.

9. Construction Management Contracts:

- a. Construction Management Contracts: The Construction Management RFP shall have a limited number of stated evaluation criteria used to evaluate proposals. Price is a critical basis for award of the contract, but price need not be the sole determining factor except to the extent required by these procedures. The RFP should list the evaluation criteria in their order of importance. LCPS may, but is not required to, assign numerical weights to the evaluation criteria unless otherwise required by these procedures.
- b. Construction Management Contracts entered into by LCPS shall contain provisions requiring that (1) not more than 10% (ten percent) of the construction work, as measured by the cost of the work, be performed by the Construction Manager with its own forces and (2) the remaining 90% (ninety percent) of the construction work, as measured by the cost of the work, be performed by subcontractors of the Construction Manager, which the Construction Manager shall procure by publicly advertised, competitive sealed bidding to the maximum extent practicable.
- c. The Construction Management procurement process shall include a two-step competitive negotiation process.

10. Design-Build Contracts:

- a. Design-Build contracts may be awarded to the offeror who is fully qualified and has been determined to have provided the best value in response to the RFP.
- b. The Design-Build procurement process shall include a two-step

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competitive negotiation process consistent with the standards established by the Commonwealth of Virginia Division of Engineering and Buildings.

11. The following additional procedures beyond those in Code of Virginia § 2.2-4360 apply to protests by offerors or prospective offerors in procurements resulting in a Design-Build Contract or Construction Management Contract:

- a. Protests based upon a decision to use Design-Build or Construction Management for a project shall be made as soon as possible after the decision is made public and not later than five (5) days after publication of the notice of the RFQ for Design-Builders to submit qualifications for the project or for Construction Managers to prequalify for the project, as applicable. Otherwise, any protest based upon this ground shall be deemed to be waived.
- b. Protests based upon the contents of an RFQ or RFP shall be made at least five (5) days prior to when proposals are due in response to the RFQ or RFP. Otherwise, any protest based upon the contents of the RFQ or RFP shall be deemed to be waived.
- c. Submission of qualifications or materials to prequalify in response to an RFQ for a project using Design-Build or Construction Management shall constitute a waiver by the submitter of any protest based upon (i) a decision to use Design-Build or Construction Management for the project, and/or (ii) the terms and conditions of the RFQ. Submission of a proposal in response to an RFP shall constitute a waiver by the submitter of any terms and conditions in the RFP.

12. Additional procedures related to Design-Build or Construction Management contracts are outlined in Regulation 6340.

[Former Policy 6-43]

Adopted: 10/14/14, 12/03/19

Revised: 9/4/25

Leg Refs: Code of Virginia §§ [2.2-4300](#) - [2.2-4383](#)